



Outlook

Fwd: Baby Term Sheet; Complete with Docusign: Term Sheet revised.pdf

From Magnus Hagen <magnus@urbanresortnyc.com>**Date** Tue 12/31/2024 1:05 PM**To** Qitao Wu <qitaow@hantmanlaw.com>

1 attachment (4 MB)

Maureen Baby Corner Lease Nightclub_Rewrite (0929)SMH.docx;

See below from 3 Oct incl the draft

Your sincerely

Magnus Hagen

+47 926 08 254 / +34 629 528 177

Begin forwarded message:

From: Magnus Hagen <magnus@urbanresortnyc.com>**Date:** 3 October 2024 at 16:48:04 GMT+1**To:** maureenlupo27@gmail.com**Subject:** Fwd: Baby Term Sheet; Complete with Docusign: Term Sheet revised.pdf

Hi Maureen,

See below.

Sincerely

Magnus Hagen

+34 629 528 177 / +47 926 08 254 / Magnus@urbanresortnyc.com

Begin forwarded message:

From: Magnus Hagen <magnus@urbanresortnyc.com>**Date:** 29 September 2024 at 20:27:33 CEST**To:** "ian parkviewdevelopers.com" <ian@parkviewdevelopers.com>, Ba Baby Maureen Lupo <maureenlupo27@gmail.com>**Cc:** Michal Kravarik <mike@parkviewdevelopers.com>, Richard Lemmerman <richard.lemmerman@gmail.com>**Subject:** Re: Baby Term Sheet; Complete with Docusign: Term Sheet

revised.pdf

Hi,

Ian, as per our most recent call. Attached you find updated lease agreement showing amendments as track changes. Worth noting is:

- Included **right for landlord to rent out the spaces in periods outside of tenant's permitted use** (e.g. to day events). Maureen will need to provide a schedule for planned events 30 days in advance so our corporate booker can plan around this.
- **Security deposit \$500,000** shall be paid to landlord and document insurance coverage before lease to take effect (prior to 1 October).
- **Tenant to carry the Premises share of utilities, real estate taxes etc.** as normal for triple net lease, otherwise the lease terms are in line with the previous proposal from Cohen Gresser.

Maureen, please let me know when the terms has been revised and ok on your side. Then we will coordinate a sign-ready version.

I am available if there are any questions.

Your sincerely
Magnus Hagen
+47 926 08 254 / +34 629 528 177

On 29 Sep 2024, at 20:01, Magnus Hagen
<magnus@urbanresortnyc.com> wrote:

Hi Ian,

As discussed, the proposed contract isn't suitable for this purpose.

I've already raised several issues during our phone conversation, so I won't go into further detail here. Per your request, I've revised Nick's proposal and adapted it to a 3-month limited spot lease, which I've attached to this email.

To finalize the contract, I need your input on the following two points:

- 1. ELECTRIC SERVICES; UTILITIES.

Landlord has installed in the Premises a separate electric and gas meter for the Premises [IAN CONFIRM]. Tenant shall be responsible for the payment and upkeep of the electrical and gas service. Tenant shall pay to Landlord, as Additional Rent, **one third (1/3)** of all charges of any kind incurred by Landlord, but benefiting Tenant in respect of any and all other utilities required and/or provided to or for the Premises, including, heating, air conditioning, water, and sewer that are not separately metered for the period from the Commencement Date through the Expiration Date.

- **Equity Partner Requirement: ???** Tenant shall maintain an equity partner holding a ten percent (10%) to fifty percent (50%) interest in Tenant's business. Such equity partner shall be a reputable and experienced operator in the club or hospitality industry, capable of assisting Tenant in maintaining compliance with industry standards and legal obligations. This partnership is a material condition of this Lease to ensure Tenant's operations align with professional standards.

Looking forward to your feedback so we can wrap this up.

<Maureen Baby Corner Lease Nightclub_Rewrite
(0929)SMH.docx>

Your sincerely
Magnus Hagen
+47 926 08 254 / +34 629 528 177

On 29 Sep 2024, at 13:38, Richard Lemmerman
<richard.lemmerman@gmail.com> wrote:

Ian,

For starters,

1. 90 day pop up sounds like a good compromise under the circumstances
2. However, this lease does not specify that, are you simultaneously giving her a 90 day eviction notice?
3. Is 90 day lease enough for Baby to apply for the appropriate liquor licences that she will need?
4. I do not understand why the "good guy" clause is worded the way it is.

5. We will work to try to help her get her POS and accounting systems in order ASAP. I assume that revenue to date is not included in this agreement and that you have agreed to basically allow her to put this revenue towards her renovation since she started working on this project. (I think that is not a bad idea considering everything)

6. The agreement specifies 15% of revenues, but not how these will be paid. I would suggest spelling this out. I would suggest for the pop up period the 3rd day of the following month. This would mean November 3, December 3, and January 3 for the period of the pop up. In each month this should allow plenty of time to verify revenue from the POS system and transfer the funds. There would be no payment expected in October given the assumption in 5 above. We can modify this as appropriate following the pop up period.

Richard

On Sun, Sep 29, 2024 at 1:48 AM ian

[parkviewdevelopers.com](mailto:ian@parkviewdevelopers.com)

<ian@parkviewdevelopers.com> wrote:

Magnus,

Will you review this for me? Baby wants me to sign it ASAP so she can start asap and I agree.

We're gonna give Baby a 90 day lease to get started so she can get the rest of the year under her belt what happens to be the best three months of the year

Rent will simply be 15% of gross sales Richard L will advise and oversee finance and cash controls and everything related to that.

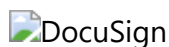
I will lay out the money to put in the air-conditioning system and when we sign a long-term deal with Baby that may be reimbursed and we can figure that out later.

Thank you,
Ian S. Reisner
Ian@ParkviewDevelopers.com

ParkviewDevelopers.com
917-545-9038

Begin forwarded message:

From: DERIAN NASCA via Docusign
<dse_NA3@docusign.net>
Date: September 28, 2024 at 4:05:18 AM EDT
To: "ian [parkviewdevelopers.com](mailto:ian@parkviewdevelopers.com)"
<ian@parkviewdevelopers.com>
Subject: Complete with Docusign: Term Sheet revised.pdf
Reply-To: DERIAN NASCA
<DERIANNASCA@gmail.com>



DERIAN NASCA sent you a
document to review and sign.

REVIEW DOCUMENT

DERIAN NASCA
DERIANNASCA@GMAIL.COM

Ian Reisner,

Complete with Docusign: Term Sheet
revised.pdf

Thank You, DERIAN NASCA

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